

26STCV02405 26STCV02405

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-08-14

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Case Number: 26STCV02405 Hearing Date: August 14, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

MICHAEL DALE SMITH and KARYN SMITH,

Plaintiffs,

v.

ALCO INDUSTRIES, INC., et al.

Defendants.

Case No. 26STCV02405

Hearing Date: August 14, 2026

Time:

9:00 a.m.

2 [TENTATIVE] ORDER

RE:2

ILLINOIS TOOL WORKS, INC.'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On January 23, 2026, Plaintiffs Michael and Karyn Smith filed their complaint for personal injury alleging Mr. Smith developed mesothelioma after he was exposed to asbestos and asbestos-containing products. Mr. Smith alleges he was exposed to asbestos through his father's work in the automotive industry. As to Illinois Tool Works, Inc. ("ITW" or "Defendant"), Plaintiff alleges that he was exposed to ITW's asbestos-containing Evercoat White Star ("Evercoat") auto body filler products.

On June 15, 2026, ITW moved for summary judgment or summary adjudication on the grounds that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against it.

On July 27, 2026, Plaintiffs opposed, arguing that ITW failed to shift its moving burden. Alternatively, Plaintiffs argue that their evidence creates a triable issue of material fact over whether Mr. Smith was exposed to asbestos by ITW's asbestos-containing products.

On August 3, 2026, ITW replied, arguing Plaintiffs' evidence is insufficient to raise a triable issue of material fact over whether the Evercoat product Mr. Smith worked with contained asbestos.

ITW fails to meet its initial burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their contention that Mr. Smith was exposed to an asbestos-containing product for which it is responsible. The motion for summary judgment is denied.

ITW's motions for summary adjudication to the cause of action for intentional concealment and the demand for punitive damages are

granted as unopposed.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure” to asbestos-containing products and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has

proven exposure to a defendant's product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor." (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416 (Lineaweaver).)

Where a

plaintiff's allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence "defendant's product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it..." (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) Where a defendant manufactures similar products, some of which contained asbestos and some of which did not, a plaintiff must present evidence from which the court can reasonably infer that it was more likely than not that the plaintiff was exposed to an asbestos-containing variety of the defendant's product. (Collin v. CalPortland Co. (2014) 228 Cal.App.4th 582, 593.)

i. Defendant's Burden:

Factually Devoid

ITW argues that Plaintiffs'

responses to written discovery and deposition testimony are devoid of facts supporting their claims against it. (Motion at pp.8-9 ["ITW propounded "all facts" written discovery on Plaintiffs to ascertain the evidence in support of Plaintiff's allegations against ITW...Such 'mere allegations' are insufficient in the face of summary judgment. (CCP §

437c

et seq.; Andrews, supra, 138 Cal.App.4th at 107.) No rational jury could ever use Plaintiffs' conclusory responses to ITW's written discovery to find by a preponderance of the evidence that ITW exposed Plaintiff to asbestos. Accordingly, causation cannot be established and summary judgment is appropriate."].)

In opposition, Plaintiffs argue that

their discovery responses were not factually devoid. (Opp. at pp.7-8 ["Michael Dale Smith's deposition testimony and verified interrogatory responses show that White Star auto body filler was routinely sanded in his presence from 1959

to 1961, 1964 to 1967, and 1970 to 1972. Plaintiff's interrogatory responses identify Mr. Smith as the product identification witness, ITW's Persons Most Knowledgeable and records custodians as witnesses with knowledge of the talc content in Evercoat White Star, and Plaintiff's experts as witnesses with knowledge of the asbestos content in the talc in Evercoat White Star and the propensity of the products to release asbestos during activities such as sanding."].)

In reply, ITW reiterates that it properly shifted its burden. (Reply at pp.2-3.)

ITW fails to meet its initial burden

to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Smith was exposed to asbestos by an asbestos-containing product for which it was responsible. Plaintiffs' discovery responses were required to provide a factual basis to show products for which ITW was responsible were present at Mr. Smith's worksite and that these products contained asbestos. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.) Here, when ITW asked Plaintiffs to "STATE ALL FACTS that support [their] contention that [Mr. Smith was] exposed to ASBESTOS by ITW," Plaintiffs responded as follows:

"Mr. Smith was exposed to asbestos from Evercoat White Star body filler while visiting his father's job sites from the late 1950s through the early 1970s. Mr. Smith first encountered autobody mechanics working with Evercoat White Star autobody filler while visiting his father at Three-Way Chevrolet in Bakersfield, California. From approximately 1959 until 1961, Mr. Smith visited his father at Three-Way Chevrolet 3-4 days per week after school and most days during his summer vacations. Mr. Smith spent a lot of time visiting his father because his mother was frequently taking Mr. Smith's younger sister to treatment and therapy for polio. While visiting his father in the body shop, Mr. Smith saw mechanics installing body filler and primer on "dozens and dozens" of occasions.

Mr. Smith next encountered autobody mechanics working with Evercoat White Star when he visited his father at Ventura Autobody in Ventura, California, from the summer of 1964 through the summer of 1967. He spent three two-week periods visiting his father at the body shop during the summer of 1964. He visited his father at Ventura Autobody after school approximately four days per week during the school year

and 3-4 days per week during the summers of 1965 and 1966. During those visits, he was within feet of autobody mechanics applying and sanding body filler on 'dozens and dozens' of occasions. Mr. Smith also encountered autobody mechanics working with Evercoat White Star when visiting autobody shops with his father during the summers of 1969, 1970, 1971, and 1972. His father was working as an appraiser for Lee Stormont Insurance during those visits. During those visits, which usually lasted a couple of hours each, Mr. Smith observed workers applying and sanding body fillers and primers.

The Evercoat White

Star body filler was in gallon-sized cans and had to be mixed with hardener, which came packaged in tubes, prior to installation. Mr. Smith testified that the autobody mechanics sanded the autobody fillers, including Evercoat White Star body filler, with an electric sander after it dried and then sanded by hand for detail work. Mr. Smith was exposed to dust from Evercoat White Star body filler on 'dozens and dozens' of occasions while visiting his father at Three-Way Chevrolet, Ventura Autobody, and various body shops with his father between 1969 and 1972. ITW automotive primers, sealers, and paints contained asbestos during the relevant years. ITW automotive repair products, including Evercoat White Star body filler, used at Plaintiff's father's jobsites between 1969 and 1972, contained industrial talc that was contaminated with asbestos supplied by Vermont Talc, Engelhard Minerals & Chemicals Corp., Barretts Minerals Inc., Minerals Technologies, Inc., Imerys Talc America, Inc., Pfizer, Inc., Luzenac America, Inc., Cyprus Industrial Minerals, Co., and Rio Tinto Minerals. (Vermont Talc Inc's Responses to Plaintiff's Interrogatories directed to Defendant served on March 13, 2026 in Douglas B. Young, et al. v. 3M Company, et al., Commonwealth of Massachusetts, Middlesex, Civil Action No. 25-0944, confirming it sold talc in 1976, 1977, 1979, 1981, 1982, 1983, 1984, 1985, 1988; and Evercoat Polyester Glazing Putty MSDS dated February 21, 2019 (10-30% talc)).

Scientific data,

corporate documents, witnesses with knowledge and Plaintiffs' experts confirm that the talc sourced from Montana mines for these products, was contaminated with asbestos. As explained by Dr. Rohl, et al: 'The mineral talc is a hydrous magnesium sheet silicate that occurs in both platy and fibrous crystal forms. Talc tends to occur in rock masses coexisting with a number of other hydrous magnesium silicate minerals. Typically, talc deposits consist of fine grained, intergrown mixtures of minerals which may contain considerable amounts of asbestos.' Rohl, Asbestos in Talc, Environmental Health Perspectives Journal,

Volume 9, at pp. 129-132, 1974.) Thus, the processes used to mine talc ore (blasting, drilling) and mill talc ore (crushing and pulverizing) result in the presence of asbestos minerals, such as chrysotile and amphiboles, in talc sold for use in commercial industry and consumer products. See Rohl, *Asbestos in Talc*, at p. 129: 'Since the mining of talc rock almost invariably includes the mining of asbestos as well, the asbestos contaminant may be carried over into the consumer product and thus introduce the risk of asbestos disease.'"

(Weiss Decl., Exhibit C at pp.2-10.) The responses also include extensive references to expert testimony, historical testing, and scientific articles showing talc mined in Montana is contaminated with asbestos. (Id.)

ITW also directs the court's attention to Mr. Smith's deposition testimony wherein he testified that he had never heard of ITW, had no personal knowledge that he was exposed to asbestos by an ITW product, and had never spoken with an ITW representative. (Weiss Decl., Exh. D at 498:24-499:6, 499:19-500:6 ["Q:...I represent a company called Illinois Tool Works, Inc. Have you ever heard of that company before? A: No. Q:...Do you associate any products or services with the name Illinois Tool Works, Inc.? A: No...Q: Do you have any personal knowledge, sir, that you were exposed to asbestos as a result of any product or service attributable to Illinois Tool Works, Inc.? A: No...Q: Have you ever spoken with a representative of Illinois Tool Works, Inc. that you know of? A: No."].) Mr. Smith had no knowledge that anyone at ITW acted with conscious disregard for his safety, that ITW acted with an intent to harm him, or that ITW acted with fraud or malice toward him. (Id. at 500:7-19.)

Plaintiffs' discovery responses are not factually devoid. Plaintiffs' response to a comprehensive interrogatory requesting all facts supporting their contention that Mr. Smith was exposed to asbestos by an ITW product contained detailed facts describing how Mr. Smith was exposed to Evercoat from his visits to his father's body shop from 1959-1961, 1964-1967, and 1969-1972. (Weiss Decl., Exhibit C at pp.2-10.) The response explains that Mr. Smith encountered mechanics at the shop sanding the dried Evercoat product on dozens of occasions. (Id.) The response also specified that the Evercoat product Mr. Smith encountered contained industrial talc supplied by "Vermont Talc, Engelhard Minerals & Chemicals Corp., Barretts Minerals Inc., Minerals Technologies, Inc., Imerys Talc America, Inc., Pfizer, Inc., Luzenac America, Inc., Cyprus Industrial Minerals, Co., and Rio Tinto Minerals." (Id.) The response further specifies that these talc

suppliers obtained their talc from mines in Montana and cites specific testing records, articles, and expert testimony showing that the talc mined in Montana is contaminated with asbestos. (Id.) The response contains specific facts, references specific documents, and names specific witnesses to support Plaintiffs' contention that Mr. Smith was exposed to asbestos by ITW's Evercoat body filler product. Even if Mr. Smith had no personal knowledge at his deposition of whether the Evercoat he encountered contained asbestos, the interrogatory response points to specific evidence showing the Evercoat body filler contained asbestos, that the product was present at his father's worksite, and that Mr. Smith was exposed to dust produced when the product was sanded. Therefore, Plaintiffs' discovery responses contain sufficient facts to support their claims against ITW.

Accordingly, ITW fails to meet its initial burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against ITW. The motion for summary judgment is denied.

C.

Motions for Summary Adjudication

ITW moves for summary adjudication of Plaintiffs' cause of action for intentional concealment and Plaintiffs' demand for punitive damages. Plaintiffs did not oppose ITW's motions for summary adjudication. (Opp. at p.1.) Accordingly, the motions for summary adjudication are granted as unopposed.

III.

Conclusion

ITW fails to meet its initial burden to show that Plaintiffs lack and cannot reasonably obtain evidence to support their contention that Mr. Smith was exposed to an asbestos-containing product for which it is responsible. The motion for summary judgment is denied.

ITW's motions for summary adjudication to the cause of action for intentional concealment and the demand for punitive damages are granted as unopposed.

Plaintiff is ordered to give notice.